

SERVICE AGREEMENT

This Service Agreement ("Agreement") is entered into as of March 1, 2024 ("Effective Date"), by and between:

ACME CORPORATION, a Delaware corporation ("Acme" or "Client"),
and
GLOBEX LLC, a New York limited liability company ("Globex" or "Provider").

Case No. 2024-CV-0412

WHEREAS, Client desires to engage Provider for software development services;
WHEREAS, Provider has the expertise and capacity to perform such services;

NOW THEREFORE, in consideration of the mutual covenants herein, the parties agree:

ARTICLE I - SCOPE OF SERVICES

1.1 Acme shall deliver custom enterprise software by June 1, 2024.

1.2 Globex shall pay \$150,000 upon successful delivery and acceptance.

1.3 Both parties shall maintain confidentiality for a period of 5 years.

ARTICLE II - PAYMENT TERMS

2.1 Payment shall be made within 30 days of delivery acceptance.

2.2 Late payments shall accrue interest at 1.5% per month.

2.3 All invoices must reference Matter Number 2024-CV-0412.

ARTICLE III - GOVERNING LAW

3.1 This Agreement shall be governed by and construed in accordance with the laws of the State of New York.

ARTICLE IV - TERMINATION

4.1 Either party may terminate this agreement upon 30 days written notice.

4.2 In the event of material breach, the non-breaching party may terminate immediately upon written notice.

4.3 Upon termination, all confidentiality obligations shall survive for the full 5-year period specified in Section 1.3.

ARTICLE V - DISPUTE RESOLUTION

5.1 Any disputes arising under this Agreement shall be resolved through binding arbitration in New York, New York.

5.2 The arbitration shall be conducted under the rules of the American Arbitration Association.

ARTICLE VI - MISCELLANEOUS

6.1 This Agreement constitutes the entire agreement between the parties.

6.2 No modification shall be effective unless in writing signed by both parties.

6.3 Filing Date: April 10, 2024

IN WITNESS WHEREOF, the parties have executed this Agreement
as of the Effective Date first written above.

ACME CORPORATION

By: _____

Name: John Thompson

Title: Chief Executive Officer

Date: March 1, 2024

GLOBEX LLC

By: _____

Name: Sarah Mitchell

Title: Managing Director

Date: March 1, 2024

WITNESS:

Name: Robert Chen

Date: March 1, 2024